

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ROSA DONMARTIN,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER BARRY LUNA, Shield No. 31420,
SERGEANT RICHARD CUSTODIO, Tax No. 922194,
and POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Kings
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 18, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER BARRY LUNA, Shield No. 31420, 67th Precinct, 2820 Snyder Ave,
Brooklyn, NY 11226
SERGEANT RICHARD CUSTODIO Tax No. 922194, 67th Precinct, 2820 Snyder Ave,
Brooklyn, NY 11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
ROSA DONMARTIN,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER BARRY LUNA, Shield No. 31420,
SERGEANT RICHARD CUSTODIO, Tax No. 922194,
and POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff ROSA DONMARTIN, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 18, 2016, at approximately 7:00 p.m., plaintiff Rosa Donmartin, while lawfully in front of 188 E. 53rd Street, Brooklyn, New York, was subject to an unlawful search, assault, battery, use of excessive force, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiff was unlawfully imprisoned for approximately 18 hours until the Kings County District Attorney declined to prosecute plaintiff, and she was released from custody. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, assaulted, battered, used excessive force, confined, falsely arrested, and falsely imprisoned plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff ROSA DONMARTIN is a resident of the state of New York.

3. POLICE OFFICER BARRY LUNA, Shield No. 31420, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER BARRY LUNA, Shield No. 31420, is and was at all times relevant herein, assigned to the 67th Precinct

5. POLICE OFFICER BARRY LUNA, Shield No. 31420, is being sued in his individual and official capacity.

6. SERGEANT RICHARD CUSTODIO, Tax No. 922194, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT RICHARD CUSTODIO, Tax No. 922194, is and was at all times relevant herein, assigned to the 67th Precinct

8. SERGEANT RICHARD CUSTODIO, Tax No. 922194, is being sued in his individual and official capacity.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On August 18, 2016, at approximately 7:00 p.m., plaintiff was lawfully present in front of 188 E. 53rd Street, Brooklyn, New York, when the defendant police officers unlawfully handcuffed and falsely arrested plaintiff without probable cause, or any legal justification.

16. By way of background, on August 18, 2016 at approximately 1:00 p.m. plaintiff arrived at her mother-in-law's home located at 188 E. 53rd Street, Brooklyn, NY. Plaintiff's father-in-law had recently passed away, and plaintiff was spending the afternoon consoling her mother-in-law and helping to clean the house.

17. At approximately 6:30 p.m., plaintiff exited the house through the front door and stood in front of the house.

18. While plaintiff was outside, plaintiff's brother-in-law locked the front door and locked plaintiff outside of the house. Plaintiff's mother-in-law, the owner of the house, told plaintiff's brother-in-law to let plaintiff back inside, but he refused.

19. Plaintiff wanted to go back into the house to help her mother-in-law, and called 911 for police assistance.

20. The defendant officers arrived at 188 E. 53rd Street in response to plaintiff's 911 call.

21. Upon arrival, plaintiff explained to the defendant police officers that her brother-in-law locked her out of the house.

22. The defendant police officers then spoke to plaintiff's brother-in-law and he falsely stated to the defendant police officers that plaintiff damaged the front door of the house.

23. Notably, the defendant police officers observed the front door and observed that the front door had no damage to it, and therefore knew that plaintiff's brother-in-law was lying and that is accusation against plaintiff was false.

24. Further, the defendant police officers spoke to plaintiff's mother-in-law and she confirmed that plaintiff did not cause any damage to the front door and that plaintiff's brother-in-law was lying.

25. As such, based upon all of the information in the possession of the defendant police officers on August 18, 2016, at the time of plaintiff's arrest, the defendant police officers clearly had no probable cause to arrest plaintiff for damaging the front door.

26. At no time relevant herein did plaintiff commit a crime or violate the law, nor did plaintiff behave in a manner that would lead a reasonable police officer to believe that plaintiff committed, was about to commit or was committing a crime.

27. Nevertheless, plaintiff was unlawfully handcuffed by defendant officers without legal justification or probable cause.

28. The handcuffs placed on plaintiff were unreasonably tight on plaintiff's wrists, causing plaintiff to suffer pain and discomfort.

29. Plaintiff told the defendant police officers that the handcuffs were hurting her wrists, and asked the defendant police officers to loosen the handcuffs, but the defendant police officers ignored plaintiff and failed to loosen the handcuffs.

30. The unreasonably tight handcuffs were the direct and proximate cause of the serious physical injuries to plaintiff's wrists.

31. Plaintiff was transported by the defendant police officers to the 67th Precinct against her will, where she was photographed, searched, fingerprinted and then placed in a holding cell by the defendants.

32. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

33. On August 19, 2016 at approximately 1:00 a.m., plaintiff was transported from the 67th Precinct to Kings County Central Booking and placed in a holding cell.

34. The defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff had committed a crime.

35. On August 19, 2016 at approximately 1:00 p.m., after being unlawfully detained for approximately 18 hours, the District Attorney declined to prosecute plaintiff, and plaintiff was released from custody.

36. As a result of the false arrest and imprisonment of plaintiff, plaintiff has suffered from severe anxiety, depression and insomnia, for which she has been forced to seek psychiatric and psychological treatment.

37. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest and imprisonment, assault, battery, and use of excessive force against plaintiff.

38. The unlawful search, seizure, false arrest and imprisonment, assault, battery, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 38 with the same force and effect as if more fully set forth at length herein.

40. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully searched, assaulted, battered, subjective to excessive force, falsely arrested, and falsely imprisoned, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

44. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

49. Defendants lacked probable cause to search plaintiff.

50. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

51. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

52. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

53. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The use of excessive force by defendants by, amongst other things, by tightly handcuffing plaintiff constituted objectively unreasonable physical seizures of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

55. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION**Assault**

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, that such acts caused apprehension of such contact in the plaintiff.

58. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION**Battery**

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner handcuffed plaintiff excessively tightly without her consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

68. Defendants failed to intervene to prevent the unlawful conduct described herein.

69. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

73. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Rosa Donmartin demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 18, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER BARRY LUNA, Shield No. 31420, 67th Precinct, 2820 Snyder Ave,
Brooklyn, NY 11226
SERGEANT RICHARD CUSTODIO Tax No. 922194, 67th Precinct, 2820 Snyder Ave,
Brooklyn, NY 11226

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 18, 2019

/s/
DAVID M.HAZAN